

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT PROHIBITING ALUMINUM IN VACCINES; PROVIDING
5 ENFORCEMENT; PROVIDING FOR NOTIFICATION AND IMPLEMENTATION; AND PROVIDING
6 EFFECTIVE DATES."

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8 WHEREAS, aluminum is used to induce allergies in animals by pairing aluminum with a silicone-
9 covered food molecule to induce a permanent food allergy for study, and this is used to study treatments for
10 food allergies; and

11 WHEREAS, when a child receives a vaccine that contains aluminum, the aluminum can create an
12 allergy to anything that the child comes into contact with in the ambient environment; and

13 WHEREAS, a child receiving a vaccine that contains aluminum is 30 times more likely to develop an
14 allergic rhinitis than a child that has received no vaccines, due to the aluminum forcing the body into a hyper-
15 reactive state; and

16 WHEREAS, it is possible for vaccines to be manufactured without aluminum as an ingredient.

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18 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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20 NEW SECTION. **Section 1. Prohibition on aluminum in vaccines -- enforcement.** (1) A vaccine
21 containing aluminum as an ingredient may not be used or sold within the state. A health care provider, as
22 defined in 50-4-106, may not administer a vaccine that contains aluminum as an ingredient.

23 (2) The department of public health and human services may use its authority pursuant to 50-1-
24 202 to enforce this section.

25 (3) The department of labor and industry may maintain a licensing action against a health care
26 provider for a violation of this section.

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28 NEW SECTION. **Section 2. Provider notification -- implementation plan.** (1) Within 30 days of [the

effective date of this section], the department of public health and human services shall provide notice of [sections 1 and 2] to each vaccine manufacturer, vaccine distributor, and health care provider in the state.

(2) Within 1 year of [the effective date of this section], a vaccine manufacturer or vaccine distributor shall submit an implementation plan to the department of public health and human services. The implementation plan must include:

(a) a reasonable timeline for compliance not to exceed 90 days;

(b) provisions for the removal of vaccines containing aluminum from all retail, pharmacy, and health_care establishments in the state; AND

(c) provisions for the distribution of aluminum-free vaccines to pharmacy and health_care providers in the state;

(3) Within 15 days of the date that aluminum-free vaccines become available for human use, the department of public health and human services shall certify to the code commissioner that aluminum-free vaccines are available.

(4) Within 30 days of the department of public health and human services certifying the availability of aluminum-free vaccines, a vaccine manufacturer or vaccine distributor shall proceed with the implementation plan submitted pursuant to subsection (2).

NEW SECTION. Section 3. Codification instruction. [Sections 1 and 2] are intended to be codified as a new part in Title 50, chapter 17, and the provisions of Title 50, chapter 17, apply to [sections 1 and 2].

NEW SECTION. Section 4. Effective date and contingent effective date. (1) Except as provided in subsection (2), [this act] is effective on passage and approval.

(2) [Section 1] is effective on the date that the director of the department of public health and human services certifies to the code commissioner that aluminum-free vaccines are available. The director of the department of public health and human services shall submit certification within 15 days of the occurrence of the contingency.

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